State of Wisconsin
DEPARTMENT OF NATURAL RESOURCES
1027 W St. Paul Ave
Milwaukee, WI 53233

Tony Evers, Governor
Karen Hyun, Ph.D., Secretary
Telephone 608-266-2621
Toll Free 1-888-936-7463
TTY Access via relay - 711

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IP-SE-2026-30-01917

Zilber Property Group
Jason Lueders
710 N. Plankinton Ave
Milwaukee, WI 53203

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Milwaukee, WI 53203

RE: Water Quality Certification for Wetland Disturbance in the Village of Pleasant Prairie, Kenosha County

Dear Jason Lueders,

The Wisconsin Department of Natural Resources has received a State Water Quality Certification (WQC) request pursuant to 40 CFR Part 121, requested by Jason Lueders to permanently fill 1.46 acres of wetlands, which are waters of the state, located in the SW 1/4 of NW 1/4, Section 27, Township 01, Range 22 E, Village of Pleasant Prairie, Kenosha County.

The Department has examined this application as it relates to Clean Water Act Section 401, Chapters 30, 281, and 283, Wis. Stat., and chs. NR 102-105 and 299, Wis. Adm. Code. The Department has determined the following conditions for the U.S. Army Corps of Engineers (USACE) permit number MVP-2017-01912-LRK are required to ensure compliance with state water quality standards enumerated in s. NR 299.04, Wis. Adm. Code.

CERTIFICATION CONDITIONS

1. Erosion and Sediment Control Practices. The project site must implement erosion and sediment control measures that adequately control or prevent erosion and prevent damage to waterways and wetlands as outlined in Wis. Admin. Code s. NR 151.11(6m). These standards can be found at the following website: http://dnr.wi.gov/topic/Stormwater/standards/const_standards.html. Any area where topsoil is exposed during the project should be immediately seeded and mulched to stabilize disturbed areas and prevent soils from being eroded and washed into the waterway.
    1. **Justification** : Pursuant to ss. NR 102.04(1) and NR 102.06, Wis. Adm. Code, objectionable deposits and nutrients may not be present in amounts that interfere with public rights and interests or exceed water quality standards for surface water. In-water and upland BMPs in alignment with ch. NR 151, Wis. Adm. Code, are required to help ensure excessive sedimentation, TSS, and nutrient loadings will not result in a violation of state wetland water quality standards under s. NR 103.03, Wis. Adm. Code.
2. Access. The permittee shall allow the WDNR reasonable entry and access to the discharge site to inspect the discharge for compliance with the certification and applicable laws.
    1. **Justification** : On-site inspection is a critical element to gather necessary information for water quality certification decisions and quality control and assurance of data provided by the applicant. This authorization is required under s. NR 299.05(3)(d)2.c, Wis. Adm. Code.

3. Wetland protection. You shall not store any vegetation, material, or equipment in wetlands unless authorized through an approved work plan. The project will be constructed in a manner that will maintain wetland hydrology in the remaining wetland complex.
    1. **Justification** : Pursuant to ss. NR 102.04(1)(a) and (b) and NR 103.03, Wis. Adm. Code, objectionable deposits or debris shall not be present in amounts that interfere with public rights and interests in waterways or the functions and values of wetlands in Wisconsin.
4. Temporary fills. Any temporary fills must be entirely removed, and the affected areas returned to their preexisting elevation and vegetated.
    1. **Justification:** Pursuant to ss. NR 102.04(1)(a) and (b) and NR 103.03, Wis. Adm. Code, objectionable deposits or debris shall not be present in amounts that interfere with public rights and interests in waterways or the functions and values of wetlands in Wisconsin.
5. Invasive Species. To stop the spread of invasive species and viruses from one navigable waterway to another navigable waterway, all equipment or portions of equipment used for constructing, operating, or maintaining the project, including tracked vehicles, barges, boats, silt or turbidity curtains, hoses, sheet piles, and pumps, must be decontaminated for invasive species and viruses before and after use or prior to use within another navigable waterway. Follow the most recent Department approved washing and disinfection protocols and Department approved best management practices to avoid the spread of invasive species as outlined in ch. NR 40, Wis. Adm. Code. These protocols and practices can be found on the Department website at http://dnr.wi.gov/topic/Invasives/bmp.html, Keyword: “equipment operator” or “invasive bmp” and at http://dnr.wi.gov/topic/Invasives/documents/EquipOper.pdf .
    1. **Justification:** Pursuant to s. NR 103.03(2)(f)3., Wis. Adm Code, water quality certification must prevent conditions conducive to the establishment or proliferation of nuisance organisms in order to protect existing wetland habitat and ecosystems. Invasive species threaten the “protection and propagation of a balanced fish and other aquatic life community” under the “Fish and other aquatic life” designated use in s. NR 102.04(3), Wis. Adm. Code.
6. Preventive Measures. Measures must be adopted to prevent potential pollutants from entering a wetland or waterbody. Construction materials and debris, including fuels, oil, and other liquid substances, may not be stored in the construction work area in a manner that would allow them to enter a wetland or waterbody as a result of spillage, natural runoff, or flooding. In addition, biodegradable hydraulic fluid should be used in equipment that is operated below the Ordinary High-Water Mark. If a spill of any potential pollutant should occur, it is the responsibility of the permittee to remove such material, minimize any contamination resulting from this spill, and immediately notify the State Duty Officer at 1-800-943-0003.
    1. **Justification:** Pursuant to ss. NR 102.04(1)(a) and (b) and NR 103.03, Wis. Adm. Code, objectionable deposits or debris shall not be present in amounts that interfere with public rights and interests in waterways or the functions and values of wetlands in Wisconsin.
7. Suitable Fill Material. All fill authorized under the permit shall be free from hazardous substances as defined by s. 289.01(11), Wis. Stats., free from solid waste as defined by s. 289.01(11) and (33), Wis. Stats., and must consist of clean, suitable soil material as defined by s. NR 500.03(214), Wis. Adm. Code.
    1. **Justification:** Pursuant to ss. NR 102.04(1)(a) and (b) and NR 103.03, Wis. Adm. Code, objectionable deposits or debris shall not be present in amounts that interfere with public rights and interests in waterways or the functions and values of wetlands in Wisconsin.

Please be aware that Section 401 Certification does not release the permittee from obtaining all other necessary federal, state, and local permits, licenses, certificates, approvals, registrations, charters, or similar forms of permission required by law. It does not limit any other state permit, license, certificate, approval, registration, charter, or similar form of permission required by law that imposes more restrictive requirements.

The Department appreciates your willingness to incorporate these water quality certification conditions into U.S. Army Corps of Engineers permitting decisions. Please reach out to me at

sonya.ponzi@wisconsin.gov or (608) 598-0346 if you have any questions or concerns about this certification.

Sincerely,

Sonya C. Ponzi

Sonya Ponzi
Water Management Specialist

Email CC:
Lorin Kinney – USACE
Andrew Shoaf – Pinnacle Engineering Group